

SOLVED PRACTICE WORKBOOK

Directive Principles of State Policy - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Directive Principles of State Policy - Solved Practice Workbook

Source and status control: Constitution Part IV; canonical Basic, Advanced and complete topic owners; audited PYQ ledgers; OCR-searchable local polity books; official constitutional-amendment texts and Supreme Court judgments checked through 7 September 2026. Exactly 32 original MCQs appear before eight audited PYQs. Only UPSC 2025 Prelims Q55 prints the held final local-official key; the other six objective answer letters are withheld.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCD. Every option has a unique substantive explanation and every question ends with a unique question-specific Examiner trap.

BASIC MCQS / REMEDIATION

Q1. With reference to Articles 36 and 37, consider the following statements:

1. "State" in Part IV has the same meaning as in Part III.
2. Every Directive Principle creates an enforceable claim once Parliament has not acted for a reasonable period.
3. Article 37 combines non-enforceability with a duty on the State in making laws.

Which statements are correct?

A. 1 and 3 only B. 2 only C. 1 and 2 only D. 1, 2 and 3

Answer: A.

- **A:** Correct: Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "2 only" fails against the controlling rule. Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.
- **C:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.
- **D:** Incorrect: the proposition "1, 2 and 3" fails against the controlling rule. Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.

Examiner trap: Article 36 imports the Part III meaning of State; it does not create a narrower Union-only addressee.

Q2. Which one of the following most accurately describes the historical analogy used for DPSP?

A. They convert conventions of Cabinet government into judicial remedies. B. They resemble the Instrument of Instructions under the Government of India Act, 1935, but are addressed to democratic legislative and executive authorities. C. They reproduce the enforceable social rights in the United States Bill of Rights. D. They are identical to Irish constitutional provisions and were copied without adaptation.

Answer: B.

- **A:** Incorrect: the proposition "They convert conventions of Cabinet government into judicial remedies." fails against the controlling rule. Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.
- **B:** Correct: Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "They reproduce the enforceable social rights in the United States Bill of Rights." fails against the controlling rule. Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.

- **D:** Incorrect: the proposition "They are identical to Irish constitutional provisions and were copied without adaptation." fails against the controlling rule. Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.

Examiner trap: Irish borrowing identifies the immediate model, while the Spanish antecedent and Indian adaptation prevent a photocopy claim.

Q3. Consider the following pairs:

1. Article 39(b) - distribution of material resources to subserve the common good
2. Article 39(c) - prevention of concentration of wealth and means of production to common detriment
3. Article 39(e) - equal pay for equal work
4. Article 39(f) - dignified development and protection of childhood/youth

Which pairs are correctly matched?

A. 1, 2, 3 and 4 B. 1 and 2 only C. 1, 2 and 4 only D. 2, 3 and 4 only

Answer: C.

- **A:** Incorrect: the proposition "1, 2, 3 and 4" fails against the controlling rule. Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations.
- **B:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations.
- **C:** Correct: Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "2, 3 and 4 only" fails against the controlling rule. Pairs 1, 2 and 4 are correct. Equal pay for equal work is Article 39(d); Article 39(e) protects worker and child health and prevents economic necessity from forcing unsuitable avocations.

Examiner trap: Article 39(d), not Article 39(a) or 39(e), contains equal pay for equal work.

Q4. Which directive contains an express qualification tied to the State's economic capacity and development?

A. Article 42 B. Article 40 C. Article 39A D. Article 41

Answer: D.

- **A:** Incorrect: the proposition "Article 42" fails against the controlling rule. Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."
- **B:** Incorrect: the proposition "Article 40" fails against the controlling rule. Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."
- **C:** Incorrect: the proposition "Article 39A" fails against the controlling rule. Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."
- **D:** Correct: Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development." This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: The capacity qualifier belongs expressly to Article 41; it cannot be silently added to every directive.

Q5. Which classification statement is most accurate?

A. Article 43 overlaps: living wage is commonly socialistic, while cottage industries give it a Gandhian dimension. B. Article 48A is constitutionally labelled Gandhian. C. Articles 47 and 48 can belong to only one scholarly category each. D. Article 44 is classified as socialistic by the constitutional text.

Answer: A.

- **A:** Correct: The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Article 48A is constitutionally labelled Gandhian." fails against the controlling rule. The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.
- **C:** Incorrect: the proposition "Articles 47 and 48 can belong to only one scholarly category each." fails against the controlling rule. The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.
- **D:** Incorrect: the proposition "Article 44 is classified as socialistic by the constitutional text." fails against the controlling rule. The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.

Examiner trap: A textbook category helps revision but cannot displace the constitutional wording of an overlapping Article.

Q6. Consider the following amendment changes:

1. 42nd - Articles 39A, 43A and 48A
2. 44th - Article 38(2)
3. 86th - Article 21A and recast Article 45
4. 97th - Article 43B

Which is the correct assessment?

A. 1, 2 and 3 only B. All four are correctly matched C. 2 and 3 only D. 1 and 4 only

Answer: B.

- **A:** Incorrect: the proposition "1, 2 and 3 only" fails against the controlling rule. The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B.
- **B:** Correct: The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "2 and 3 only" fails against the controlling rule. The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B.
- **D:** Incorrect: the proposition "1 and 4 only" fails against the controlling rule. The Forty-second Amendment recast Article 39(f) and inserted Articles 39A, 43A and 48A; the Forty-fourth inserted Article 38(2), the Eighty-sixth inserted Article 21A and recast Article 45, and the Ninety-seventh inserted Article 43B.

Examiner trap: Amendment questions test both insertion and recasting: Article 45 survived the Eighty-sixth Amendment in a new form.

Q7. After Union of India v. Rajendra N. Shah (2021), which position is correct?

A. The entire 97th Amendment, including Article 43B, is void. B. Parliament has no competence over multi-State co-operative societies. C. Part IXB is operative for multi-State co-operative societies, but its application to State co-operative societies failed for want of ratification; Article 43B remains. D. Part IXB is fully valid for every State co-operative society because co-operatives serve a DPSP.

Answer: C.

- **A:** Incorrect: the proposition "The entire 97th Amendment, including Article 43B, is void." fails against the controlling rule. The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.
- **B:** Incorrect: the proposition "Parliament has no competence over multi-State co-operative societies." fails against the controlling rule. The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.
- **C:** Correct: The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "Part IXB is fully valid for every State co-operative society because co-operatives serve a DPSP." fails against the controlling rule. The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.

Examiner trap: A welfare objective cannot cure failure to follow the State-ratification requirement under Article 368.

Q8. Which statement about the current Article 31C is correct?

A. It protects every law implementing any Directive Principle from every Fundamental Right. B. It was wholly erased when the 42nd Amendment extension was struck down. C. It prevents courts from examining whether a law genuinely implements Article 39(b) or (c). D. It protects genuine Article 39(b)/(c) laws against Articles 14 and 19, while judicial review of the nexus and basic structure remains.

Answer: D.

- **A:** Incorrect: the proposition "It protects every law implementing any Directive Principle from every Fundamental Right." fails against the controlling rule. This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*.
- **B:** Incorrect: the proposition "It was wholly erased when the 42nd Amendment extension was struck down." fails against the controlling rule. This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*.
- **C:** Incorrect: the proposition "It prevents courts from examining whether a law genuinely implements Article 39(b) or (c)." fails against the controlling rule. This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*.
- **D:** Correct: This is the combined effect of *Kesavananda Bharati (1973)*, *Minerva Mills (1980)* and *Property Owners Association (2024)*. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: *Minerva Mills* invalidated the all-DPSP extension of Article 31C, not the surviving Article 39(b)/(c) shield.

Q9. Under Property Owners Association (2024), which formulation is correct?

A. A privately owned resource may fall under Article 39(b) depending on its nature, community impact, scarcity, concentration and common-good dimension. B. Every private asset is automatically a material resource of the community. C. No privately owned resource can ever fall within Article 39(b). D. Article 39(b) applies only after the State has first nationalised the resource.

Answer: A.

- **A:** Correct: The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good. This option states the controlling rule without adding a wider immunity or remedy.

- **B:** Incorrect: the proposition "Every private asset is automatically a material resource of the community." fails against the controlling rule. The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.
- **C:** Incorrect: the proposition "No privately owned resource can ever fall within Article 39(b)." fails against the controlling rule. The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.
- **D:** Incorrect: the proposition "Article 39(b) applies only after the State has first nationalised the resource." fails against the controlling rule. The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.

Examiner trap: Property Owners Association rejects both automatic inclusion and automatic exclusion of privately owned resources.

Q10. Arrange the following in correct constitutional sequence:

1. *I.C. Golaknath* (1967)
2. 25th Amendment
3. *Minerva Mills* (1980)
4. *Kesavananda Bharati* (1973)

A. 2-1-4-3 B. 1-2-4-3 C. 1-4-2-3 D. 2-4-1-3

Answer: B.

- **A:** Incorrect: the proposition "2-1-4-3" fails against the controlling rule. 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.
- **B:** Correct: 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "1-4-2-3" fails against the controlling rule. 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.
- **D:** Incorrect: the proposition "2-4-1-3" fails against the controlling rule. 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.

Examiner trap: The chronology is causal: Golaknath produced an amendment response before Kesavananda imposed the basic-structure limit.

Q11. Which chain most accurately explains the constitutionalisation of education?

A. Article 46 alone created the enforceable right for every age group. B. Article 45 directly became enforceable without amendment or legislation. C. Articles 41/45 informed *Unni Krishnan*; the 86th Amendment inserted Article 21A and recast Article 45; the RTE Act supplied a statutory mechanism. D. Article 21A was inserted by the 42nd Amendment and later removed from Part III.

Answer: C.

- **A:** Incorrect: the proposition "Article 46 alone created the enforceable right for every age group." fails against the controlling rule. The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.
- **B:** Incorrect: the proposition "Article 45 directly became enforceable without amendment or legislation." fails against the controlling rule. The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.
- **C:** Correct: The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "Article 21A was inserted by the 42nd Amendment and later removed from Part III." fails against the controlling rule. The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.

Examiner trap: Education became enforceable through interpretation, amendment and statute; Article 45 did not enforce itself.

Q12. Which statement correctly distinguishes Article 40 and the 74th Amendment?

A. The 74th Amendment repealed Article 40. B. Article 40 expressly directs creation of Municipalities. C. Article 40 applies only to Parliament and not States. D. Article 40 expressly concerns village panchayats; Municipalities are separately constitutionalised in Part IXA.

Answer: D.

- **A:** Incorrect: the proposition "The 74th Amendment repealed Article 40." fails against the controlling rule. Local-government implementation overlaps, but the Article's exact text must be preserved.
- **B:** Incorrect: the proposition "Article 40 expressly directs creation of Municipalities." fails against the controlling rule. Local-government implementation overlaps, but the Article's exact text must be preserved.
- **C:** Incorrect: the proposition "Article 40 applies only to Parliament and not States." fails against the controlling rule. Local-government implementation overlaps, but the Article's exact text must be preserved.
- **D:** Correct: Local-government implementation overlaps, but the Article's exact text must be preserved. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: Article 40 names village panchayats; municipalities have their separate Part IXA route.

Q13. Which statement correctly describes Article 38(2)?

A. It directs the State to minimise inequalities in income and endeavour to eliminate inequalities in status, facilities and opportunities among individuals and groups. B. It is an original 1950 clause limited to inequality between citizens and non-citizens. C. It creates an immediately enforceable individual claim to identical income. D. It was inserted by the Forty-second Amendment together with Article 39A.

Answer: A.

- **A:** Correct: The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "It is an original 1950 clause limited to inequality between citizens and non-citizens." fails against the controlling rule. The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations.
- **C:** Incorrect: the proposition "It creates an immediately enforceable individual claim to identical income." fails against the controlling rule. The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations.
- **D:** Incorrect: the proposition "It was inserted by the Forty-second Amendment together with Article 39A." fails against the controlling rule. The Forty-fourth Amendment inserted Article 38(2), and its reach extends beyond income to status, facilities and opportunities among individuals and groups in different areas or vocations.

Examiner trap: Article 38(2) reaches status, facilities and opportunities as well as income.

Q14. Which is the correct legal-services institutional order from national to grassroots?

A. NALSA -> DLSA -> SLISA -> Taluk Committee B. NALSA -> SLISA -> DLSA -> Taluk Legal Services Committee C. Supreme Court -> Parliament -> DLSA -> Gram Sabha D. NALSA -> Finance Commission -> High Court -> Lok Sabha

Answer: B.

- **A:** Incorrect: the proposition "NALSA -> DLSA -> SLISA -> Taluk Committee" fails against the controlling rule. Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.
- **B:** Correct: Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Supreme Court -> Parliament -> DLSA -> Gram Sabha" fails against the controlling rule. Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.
- **D:** Incorrect: the proposition "NALSA -> Finance Commission -> High Court -> Lok Sabha" fails against the controlling rule. Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.

Examiner trap: The territorial legal-services chain is NALSA-SLSA-DLSA-Taluk; court committees form a parallel forum-specific layer.

Q15. Consider the following regarding sections 12 and 13 of the Legal Services Authorities Act:

1. A woman is a section 12 category irrespective of the general income route.
2. Every OBC member is independently listed as a category.
3. A person in custody is a listed category.
4. The authority must be satisfied that there is a prima facie case.

Which statements are correct?

A. 2, 3 and 4 only B. 1, 2, 3 and 4 C. 1, 3 and 4 only D. 1 and 2 only

Answer: C.

- **A:** Incorrect: the proposition "2, 3 and 4 only" fails against the controlling rule. OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.
- **B:** Incorrect: the proposition "1, 2, 3 and 4" fails against the controlling rule. OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.
- **C:** Correct: OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.

Examiner trap: Section 12 category eligibility and section 13 prima-facie screening are distinct statutory questions.

Q16. If an ordinary Lok Adalat fails to secure settlement in a pending court case, what follows?

A. The dispute becomes non-justiciable. B. It must decide the dispute on merits. C. Its members may impose a compromise in the public interest. D. The record returns to the referring court, which continues from the stage reached before reference.

Answer: D.

- **A:** Incorrect: the proposition "The dispute becomes non-justiciable." fails against the controlling rule. Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.
- **B:** Incorrect: the proposition "It must decide the dispute on merits." fails against the controlling rule. Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.
- **C:** Incorrect: the proposition "Its members may impose a compromise in the public interest." fails against the controlling rule. Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.
- **D:** Correct: Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: An ordinary Lok Adalat cannot impose a merits decision when settlement fails.

Q17. Which feature uniquely marks a Permanent Lok Adalat?

A. For a pre-litigation public-utility dispute, it may decide on merits after conciliation fails, provided the dispute does not relate to an offence. B. It can decide non-compoundable criminal offences. C. It is constitutionally created by Article 39A without statutory basis. D. It hears appeals from ordinary Lok Adalat awards.

Answer: A.

- **A:** Correct: Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "It can decide non-compoundable criminal offences." fails against the controlling rule. Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.
- **C:** Incorrect: the proposition "It is constitutionally created by Article 39A without statutory basis." fails against the controlling rule. Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.

- **D:** Incorrect: the proposition "It hears appeals from ordinary Lok Adalat awards." fails against the controlling rule. Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.

Examiner trap: Permanent Lok Adalat merits power is confined to its pre-litigation public-utility statutory field.

Q18. Which statement about Article 44 is correct?

A. It applies only to criminal law, which remains non-uniform. B. It directs the State to endeavour to secure a UCC for citizens throughout India; personal-law subjects lie in Concurrent List Entry 5. C. It directs courts to enact a uniform code when Parliament fails. D. It is a Fundamental Duty enforceable through Article 32.

Answer: B.

- **A:** Incorrect: the proposition "It applies only to criminal law, which remains non-uniform." fails against the controlling rule. Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.
- **B:** Correct: Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "It directs courts to enact a uniform code when Parliament fails." fails against the controlling rule. Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.
- **D:** Incorrect: the proposition "It is a Fundamental Duty enforceable through Article 32." fails against the controlling rule. Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.

Examiner trap: Article 44 states a State endeavour; it neither creates an Article 32 remedy nor transfers legislation to courts.

Q19. Which case-description pair is incorrectly stated?

A. *John Vallamattom* - discriminatory succession restriction and an Article 44 observation B. *Sarla Mudgal* - conversion cannot be used to evade an existing marriage C. *Shayara Bano* - Supreme Court ordered Parliament to enact a UCC within a fixed period D. *Shah Bano* - secular maintenance law and an Article 44 observation

Answer: C.

- **A:** Incorrect: the proposition "*John Vallamattom* - discriminatory succession restriction and an Article 44 observation" fails against the controlling rule. *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.
- **B:** Incorrect: the proposition "*Sarla Mudgal* - conversion cannot be used to evade an existing marriage" fails against the controlling rule. *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.
- **C:** Correct: *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "*Shah Bano* - secular maintenance law and an Article 44 observation" fails against the controlling rule. *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.

Examiner trap: Judicial observations supporting reform are not equivalent to a mandamus directing Parliament to enact a UCC.

Q20. Which statement correctly states the post-Eighty-sixth Amendment education arrangement?

A. Article 45 alone guarantees free and compulsory education from birth to fourteen. B. Article 21A covers children below six, while Article 45 begins at six. C. Article 45 was repealed when Article 21A was inserted. D. Article 21A covers ages six to fourteen, while Article 45 directs early childhood care and education until completion of six years.

Answer: D.

- **A:** Incorrect: the proposition "Article 45 alone guarantees free and compulsory education from birth to fourteen." fails against the controlling rule. The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and

recast Article 45 for early childhood care and education below six.

- **B:** Incorrect: the proposition "Article 21A covers children below six, while Article 45 begins at six." fails against the controlling rule. The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six.
- **C:** Incorrect: the proposition "Article 45 was repealed when Article 21A was inserted." fails against the controlling rule. The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six.
- **D:** Correct: The Eighty-sixth Amendment inserted Article 21A for ages six to fourteen and recast Article 45 for early childhood care and education below six. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: The Eighty-sixth Amendment divides the age field: Article 21A covers six to fourteen; Article 45 covers below six.

Q21. Which set contains only directives outside Part IV?

A. Articles 335, 350A and 351 B. Articles 44, 50 and 350A C. Articles 335, 43B and 351 D. Articles 39A, 350A and 351

Answer: A.

- **A:** Correct: Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Articles 44, 50 and 350A" fails against the controlling rule. Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.
- **C:** Incorrect: the proposition "Articles 335, 43B and 351" fails against the controlling rule. Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.
- **D:** Incorrect: the proposition "Articles 39A, 350A and 351" fails against the controlling rule. Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.

Examiner trap: Articles 335, 350A and 351 are constitutional directions outside Part IV, not additional Articles within it.

Q22. Which distinction is correct?

A. Both Articles were inserted by the 97th Amendment. B. Article 48 combines scientific agriculture/animal husbandry with cattle protection; Article 48A concerns environment, forests and wildlife. C. Article 48A is a Fundamental Duty. D. Article 48A concerns scientific animal husbandry, while Article 48 concerns forests.

Answer: B.

- **A:** Incorrect: the proposition "Both Articles were inserted by the 97th Amendment." fails against the controlling rule. Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.
- **B:** Correct: Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Article 48A is a Fundamental Duty." fails against the controlling rule. Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.
- **D:** Incorrect: the proposition "Article 48A concerns scientific animal husbandry, while Article 48 concerns forests." fails against the controlling rule. Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.

Examiner trap: Article 48 combines scientific husbandry and cattle protection; Article 48A separately covers environment, forests and wildlife.

Q23. Consider the following:

1. Article 49 protects nationally important monuments/places/objects declared by or under Parliamentary law.
2. Article 50 directs separation of judiciary from executive in State public services.
3. Article 51 encourages settlement of international disputes by arbitration.

Which are correct?

A. 1 only B. 2 and 3 only C. 1, 2 and 3 D. 1 and 2 only

Answer: C.

- **A:** Incorrect: the proposition "1 only" fails against the controlling rule. All reproduce often-neglected textual elements of Articles 49-51.
- **B:** Incorrect: the proposition "2 and 3 only" fails against the controlling rule. All reproduce often-neglected textual elements of Articles 49-51.
- **C:** Correct: All reproduce often-neglected textual elements of Articles 49-51. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "1 and 2 only" fails against the controlling rule. All reproduce often-neglected textual elements of Articles 49-51.

Examiner trap: Article 49 contains a Parliamentary-law declaration filter that a generic heritage option may omit.

Q24. Which statement best captures Article 47?

A. It only directs total prohibition and says nothing about nutrition. B. It creates an absolute Fundamental Right to health enforceable without legislation. C. It concerns animal husbandry and cattle breeds. D. It treats nutrition, standard of living and public health as primary duties and also directs prohibition of intoxicants injurious to health except medicinal use.

Answer: D.

- **A:** Incorrect: the proposition "It only directs total prohibition and says nothing about nutrition." fails against the controlling rule. Article 47 has both welfare/public-health and prohibition limbs.
- **B:** Incorrect: the proposition "It creates an absolute Fundamental Right to health enforceable without legislation." fails against the controlling rule. Article 47 has both welfare/public-health and prohibition limbs.
- **C:** Incorrect: the proposition "It concerns animal husbandry and cattle breeds." fails against the controlling rule. Article 47 has both welfare/public-health and prohibition limbs.
- **D:** Correct: Article 47 has both welfare/public-health and prohibition limbs. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: Article 47 combines nutrition, living standards, public health and a qualified prohibition direction.

Q25. Which use of a named critic is most defensible?

A. Use K.T. Shah's "pious superfluities" to introduce the no-remedy critique, then answer it with Article 37 duty, political sanction and interpretive force. B. Claim Ivor Jennings supported immediate judicial enforcement of every directive. C. Attribute "Conscience of the Constitution" to K.T. Shah. D. Treat N. Srinivasan's classification as part of constitutional text.

Answer: A.

- **A:** Correct: Named quotations add value only when accurately attributed and connected to an argument and counterargument. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "Claim Ivor Jennings supported immediate judicial enforcement of every directive." fails against the controlling rule. Named quotations add value only when accurately attributed and connected to an argument and counterargument.
- **C:** Incorrect: the proposition "Attribute "Conscience of the Constitution" to K.T. Shah." fails against the controlling rule. Named quotations add value only when accurately attributed and connected to an argument and counterargument.

- **D:** Incorrect: the proposition "Treat N. Srinivasan's classification as part of constitutional text." fails against the controlling rule. Named quotations add value only when accurately attributed and connected to an argument and counterargument.

Examiner trap: Named criticism earns marks only when answered through Article 37, institutions and delivery evidence.

Q26. Which explains why DPSP implementation varies across India?

A. Courts allocate identical budgets for every State. B. Many directives concern State/Concurrent fields, and fiscal, institutional and administrative capacity differs across States. C. Every DPSP must be implemented only by constitutional amendment. D. Article 37 bars States from making welfare laws.

Answer: B.

- **A:** Incorrect: the proposition "Courts allocate identical budgets for every State." fails against the controlling rule. Federal competence and capacity produce both innovation and unequal delivery.
- **B:** Correct: Federal competence and capacity produce both innovation and unequal delivery. This option states the controlling rule without adding a wider immunity or remedy.
- **C:** Incorrect: the proposition "Every DPSP must be implemented only by constitutional amendment." fails against the controlling rule. Federal competence and capacity produce both innovation and unequal delivery.
- **D:** Incorrect: the proposition "Article 37 bars States from making welfare laws." fails against the controlling rule. Federal competence and capacity produce both innovation and unequal delivery.

Examiner trap: Federal variation explains uneven implementation but does not erase the constitutional direction.

Q27. Which matching is correct?

1. Article 43 - living wage and cottage industries
2. Article 43A - workers' participation in management
3. Article 43B - voluntary, autonomous, democratic and professionally managed co-operatives

A. 1 only B. 1 and 3 only C. 1, 2 and 3 D. 2 and 3 only

Answer: C.

- **A:** Incorrect: the proposition "1 only" fails against the controlling rule. The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.
- **B:** Incorrect: the proposition "1 and 3 only" fails against the controlling rule. The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.
- **C:** Correct: The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively. This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "2 and 3 only" fails against the controlling rule. The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.

Examiner trap: Articles 43, 43A and 43B test three different ideas: worker welfare, industrial participation and co-operative governance.

Q28. Parliament enacts a statute declaring that every privately owned urban flat is a material resource of the community, states that it implements every DPSP, and bars all court review. Which is the best constitutional assessment?

A. The declaration conclusively activates Article 31C. B. Article 31C protects it from every Fundamental Right because housing is welfare-related. C. Courts cannot question resource classification or basic structure. D. The law must show a genuine 39(b)/(c) nexus; not every private asset qualifies automatically; the surviving shield is only against Articles 14/19 and judicial review cannot be ousted.

Answer: D.

- **A:** Incorrect: the proposition "The declaration conclusively activates Article 31C." fails against the controlling rule. The hypothetical combines *Kesavananda Bharati* (1973), *Minerva Mills* (1980) and *Property Owners Association*

(2024). A welfare label is not constitutional proof.

- **B:** Incorrect: the proposition "Article 31C protects it from every Fundamental Right because housing is welfare-related." fails against the controlling rule. The hypothetical combines *Kesavananda Bharati* (1973), *Minerva Mills* (1980) and *Property Owners Association* (2024). A welfare label is not constitutional proof.
- **C:** Incorrect: the proposition "Courts cannot question resource classification or basic structure." fails against the controlling rule. The hypothetical combines *Kesavananda Bharati* (1973), *Minerva Mills* (1980) and *Property Owners Association* (2024). A welfare label is not constitutional proof.
- **D:** Correct: The hypothetical combines *Kesavananda Bharati* (1973), *Minerva Mills* (1980) and *Property Owners Association* (2024). A welfare label is not constitutional proof. This option states the controlling rule without adding a wider immunity or remedy.

Examiner trap: A legislative declaration cannot make a weak Article 39(b)/(c) nexus conclusive or exclude basic-structure review.

Q29. What is the most accurate DPSP-related significance of the Constitution (Fourth Amendment) Act, 1955?

A. It strengthened the property and land-reform protection architecture, including Article 31A changes and Ninth Schedule additions, during the early implementation conflict. B. It inserted Article 31C for every Directive Principle. C. It inserted Article 38(2) and Article 43B. D. It constitutionalised village panchayats in Part IX.

Answer: A.

- **A:** Correct: The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third. This option states the controlling rule without adding a wider immunity or remedy.
- **B:** Incorrect: the proposition "It inserted Article 31C for every Directive Principle." fails against the controlling rule. The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third.
- **C:** Incorrect: the proposition "It inserted Article 38(2) and Article 43B." fails against the controlling rule. The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third.
- **D:** Incorrect: the proposition "It constitutionalised village panchayats in Part IX." fails against the controlling rule. The Fourth Amendment belongs to the early land-reform/property-right response. Article 31C came through the Twenty-fifth Amendment, Article 38(2) through the Forty-fourth, Article 43B through the Ninety-seventh and Part IX through the Seventy-third.

Examiner trap: The Fourth Amendment belongs to the land-reform/property-response phase; it did not insert Article 31C.

Q30. Which sequence best represents accountability for a non-justiciable Directive Principle?

A. Directive text -> automatic writ -> judicial budget -> uniform outcome B. Directive text -> competent law and appropriation -> administration -> audit, legislative scrutiny, public debate and elections C. Directive text -> executive announcement -> constitutional completion D. Directive text -> constitutional amendment in every case -> no subsequent review

Answer: B.

- **A:** Incorrect: the proposition "Directive text -> automatic writ -> judicial budget -> uniform outcome" fails against the controlling rule. Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries.
- **B:** Correct: Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal

boundaries. This option states the controlling rule without adding a wider immunity or remedy.

- **C:** Incorrect: the proposition "Directive text -> executive announcement -> constitutional completion" fails against the controlling rule. Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries.
- **D:** Incorrect: the proposition "Directive text -> constitutional amendment in every case -> no subsequent review" fails against the controlling rule. Article 37 places primary responsibility on elected institutions. Law, funding, administration, audit and political accountability convert constitutional direction into performance, while courts review enforceable legal boundaries.

Examiner trap: Part IV accountability runs through law, budget, administration, audit, political debate and elections, not courts alone.

Q31. Which statement most precisely captures Article 51(c)?

A. It makes every treaty automatically enforceable as domestic law. B. It authorises courts to conclude treaties without executive action. C. It directs the State to foster respect for international law and treaty obligations in dealings of organised peoples, without itself making every treaty self-executing. D. It concerns only arbitration of international disputes.

Answer: C.

- **A:** Incorrect: the proposition "It makes every treaty automatically enforceable as domestic law." fails against the controlling rule. Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d).
- **B:** Incorrect: the proposition "It authorises courts to conclude treaties without executive action." fails against the controlling rule. Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d).
- **C:** Correct: Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d). This option states the controlling rule without adding a wider immunity or remedy.
- **D:** Incorrect: the proposition "It concerns only arbitration of international disputes." fails against the controlling rule. Article 51(c) is an internationalist directive. Domestic enforceability still depends on constitutional and legislative rules; arbitration is separately mentioned in Article 51(d).

Examiner trap: Article 51(c) promotes respect for international law and treaty obligations; it does not make every treaty self-executing.

Q32. A statute claims to implement Article 39(b), but its stated resource connection is remote and it bars all judicial scrutiny. Which position is correct?

A. The statutory declaration conclusively activates Article 31C. B. Any welfare recital protects the law from every Fundamental Right. C. Article 31C ceased to exist after Minerva Mills. D. A court may test the real Article 39(b) nexus and basic-structure limits; Article 31C shields only a genuine implementing law from Articles 14 and 19.

Answer: D.

- **A:** Incorrect: the proposition "The statutory declaration conclusively activates Article 31C." fails against the controlling rule. Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield.
- **B:** Incorrect: the proposition "Any welfare recital protects the law from every Fundamental Right." fails against the controlling rule. Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield.
- **C:** Incorrect: the proposition "Article 31C ceased to exist after Minerva Mills." fails against the controlling rule. Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield.
- **D:** Correct: Kesavananda Bharati preserved judicial review, Minerva Mills removed the all-DPSP extension, and Property Owners Association confirmed the surviving narrow Article 39(b)/(c) shield. This option states the

controlling rule without adding a wider immunity or remedy.

Examiner trap: Article 31C protects only genuine Article 39(b)/(c) laws against Articles 14 and 19; no broader immunity should be inferred.

PYQS AND ANSWER PRACTICE

Audited direct and routed PYQs

Mains PYQ 1. UPSC 2023 GS-II Q2 - Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India. (10 marks, 150 words)

Model answer. Article 39A's access-to-justice commitment is reinforced by Article 21 fair-procedure jurisprudence and implemented through the Legal Services Authorities Act, 1987.

Entitlement: Section 12 covers SC/ST members; trafficking or begar victims; women and children; persons with disability; disaster or atrocity victims; industrial workmen; persons in custody; and persons below the income ceiling prescribed by the appropriate government. Section 13 additionally requires a prima facie case.

NALSA's role: NALSA frames policy and coordinates State, High Court, District and Taluk-level bodies. The network provides advice, representation, drafting, litigation expenses, awareness and Lok Adalats. *M.H. Hoskot* and *Hussainara Khatoon* connect counsel to fair procedure; *Suhas Chakma* (2024) strengthens monitoring of prison legal-aid delivery.

Assessment and conclusion: The architecture is broad and decentralised, but low awareness, uneven panel-lawyer quality, weak client communication and disposal-centred metrics reduce effective access. NALSA should prioritise early advice, counsel-performance review, client feedback and local-language delivery so Article 39A becomes quality-assured access rather than nominal representation.

Why this earns marks: It answers both limbs, accurately lists section 12 categories, adds section 13, names the full institutional chain and two cases, assesses achievements and delivery limits, and gives a reform-oriented verdict within a 10-marker structure.

How to improve this answer: Replace one older case reference with *Suhas Chakma v. Union of India* (2024) and its Jail Visiting Lawyer/NALSA monitoring directions; compress the eligibility list into four clusters to preserve space for a sharper assessment.

Prelims PYQ 1. UPSC 2020 GS-I Q5 - Separation of judiciary

In India, separation of judiciary from the executive is enjoined by:

- A. the Preamble of the Constitution
- B. a Directive Principle of State Policy
- C. the Seventh Schedule
- D. conventional practice

Answer withheld pending official UPSC key.

Concept analysis: Article 50 in Part IV directs the State to separate the judiciary from the executive in the public services of the State. The local repository has the official question paper but no official 2020 key.

Prelims PYQ 2. UPSC 2020 GS-I Q8 - UDHR principles

Other than the Fundamental Rights, which parts of the Constitution reflect the principles and provisions of the Universal Declaration of Human Rights, 1948?

1. Preamble
 2. Directive Principles of State Policy
 3. Fundamental Duties
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 1, 2 and 3

Answer withheld pending official UPSC key.

Concept analysis: The Preamble's justice/liberty/equality/fraternity, Part IV's socio-economic commitments and Part IVA's dignity, tolerance and internationalist duties reflect UDHR values. "Reflect" does not mean verbatim or article-by-article incorporation.

Prelims PYQ 3. UPSC 2020 GS-I Q9 - Free legal services eligibility

In India, Legal Services Authorities provide free legal services to which of the following types of citizens?

1. Person with annual income below Rs 1,00,000
 2. Transgender person with annual income below Rs 2,00,000
 3. OBC member with annual income below Rs 3,00,000
 4. All senior citizens
- A. 1 and 2 only
 - B. 4 only
 - C. 2 and 3 only
 - D. 1 and 4 only

Answer withheld pending official UPSC key.

Concept analysis: The contemporaneous legal-services framework treated statements 1 and 2 as eligible. OBC status alone is not a section 12 category and all senior citizens are not automatically included nationally. Current-answer discipline is more important than memorising the old amounts: section 12 contains category eligibility plus an income route whose ceiling is prescribed by the appropriate government.

Prelims PYQ 4. UPSC 2020 GS-I Q12 - Welfare State

Which part of the Constitution of India declares the ideal of a Welfare State?

- A. Directive Principles of State Policy
- B. Fundamental Rights
- C. Preamble
- D. Seventh Schedule

Answer withheld pending official UPSC key.

Concept analysis: Part IV, especially Articles 38 and 39, supplies the welfare-state programme. The Preamble states justice goals, but the question asks the Part declaring the welfare-state ideal.

Prelims PYQ 5. UPSC 2020 GS-I Q18 - Part IV enforceability

With reference to Part IV, which statements are correct?

1. They shall be enforceable by courts.
 2. They shall not be enforceable by any court.
 3. The principles laid down in this Part are to influence law-making by the State.
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 2 and 3 only

Answer withheld pending official UPSC key.

Concept analysis: Article 37 expressly combines non-enforceability with the principles' fundamental governance status and State duty in law-making.

Prelims PYQ 6. UPSC 2021 GS-I Q91 - Concentration of wealth

Under the Indian Constitution, concentration of wealth violates:

- A. Right to Equality
- B. Directive Principles of State Policy
- C. Right to Freedom
- D. concept of Welfare

Answer withheld pending official UPSC key.

Concept analysis: Article 39(c) directs that the economic system should not result in concentration of wealth and means of production to the common detriment. The language is directive, not a standalone Fundamental Right violation.

Prelims PYQ 7. UPSC 2025 GS-I Q55 - Provision matched to constitutional location

Consider the following pairs:

1. Separation of judiciary from executive in State public services - Directive Principles of State Policy
2. Valuing and preserving the rich heritage of composite culture - Fundamental Duties
3. Prohibition of employment of children below fourteen years in factories - Fundamental Rights

How many pairs are correctly matched?

- A. Only one
- B. Only two
- C. All three
- D. None

Final official/local-official key verified: C.

Concept analysis: Pair 1 is Article 50 in Part IV; pair 2 is Article 51A(f) in Part IVA; pair 3 is Article 24 in Part III. The Set-A official local key scan was directly checked and records Q55 as C.

Six original Mains questions with complete model solutions

Two questions each are provided at 10, 15 and 20 marks. Each model follows claim -> named evidence -> analysis -> qualification and answers the printed directive.

Original Q1 - "The Directive Principles are non-justiciable, but not non-binding." Explain. (10 marks, 150 words)

Model solution. Thesis: Article 37 denies direct judicial enforcement but declares DPSPs fundamental in governance and makes their application in law-making a State duty. Non-justiciability therefore concerns remedy, not constitutional insignificance.

Part IV supplies welfare purposes: Articles 38-39 address justice and distribution, while Articles 41-43 address assistance and labour dignity. Its primary sanction is democratic; Ambedkar expected governments to answer to the electorate.

Directives also shape enforceable law. Article 39A informed the Legal Services Authorities Act, 1987; Article 40 informed the 73rd Amendment; Articles 41 and 45 supported *Unni Krishnan*, Article 21A and the RTE Act. Courts may use DPSPs to interpret rights and reasonableness, and *Minerva Mills* treats Part III-Part IV harmony as basic structure.

Qualification: Courts cannot create the entire welfare budget or compel Article 44 solely from Part IV.

Conclusion: DPSPs operate through duty, legislation, interpretation and political accountability, not an automatic writ.

Why this earns marks: It states Article 37's complete rule, supplies named institutional and judicial evidence, and preserves the remedy-policy distinction.

How to improve this answer: Use the chain directive -> law -> institution -> enforceable legal floor, then close with the direct-remedy qualification.

Original Q2 - Examine the present constitutional scope of Article 31C after Property Owners Association (2024). (10 marks, 150 words)

Model solution. Thesis: Article 31C survives as a narrow distributive shield, not a general DPSP-supremacy clause.

The 25th Amendment protected laws giving effect to Article 39(b) or (c) against Articles 14, 19 and then Article 31, while attempting to make the legislative declaration conclusive. *Kesavananda Bharati* upheld the substantive shield but invalidated exclusion of judicial review. The 42nd Amendment extended protection to every DPSP; *Minerva Mills* struck that extension and made Part III-Part IV harmony part of the basic structure.

In *Property Owners Association* (5 November 2024), the nine-judge Bench confirmed that Article 31C, as upheld in *Kesavananda*, remains operative. Courts may test whether a law genuinely furthers Article 39(b)/(c). Some privately owned resources may qualify under Article 39(b), but not automatically; nature, scarcity, community impact and concentration are relevant.

Conclusion: The present shield is only against Articles 14 and 19; nexus review and basic-structure limits remain.

Why this earns marks: It gives the amendment-case sequence, exact rights shield, contextual private-resource rule and judicial-review caveat.

How to improve this answer: Write three subheads: objective, shield and review.

Original Q3 - Trace the evolution of the relationship between Fundamental Rights and Directive Principles. Has harmony replaced hierarchy? (15 marks, 250 words)

Model solution. Thesis: The constitutional journey moves from a simple priority rule toward structured harmony, but harmony does not mean that enforceable rights disappear before any welfare claim.

Conflict phase: In *Champakam Dorairajan* (1951), a directive could not override Article 29(2); the First Amendment responded through Article 15(4). *I.C. Golaknath* (1967) then held Fundamental Rights unamendable, restricting Parliament's capacity to implement Part IV.

Constituent response: The 24th Amendment affirmed amendment power. The 25th inserted Article 31C for laws implementing Article 39(b)/(c). *Kesavananda Bharati* (1973) upheld the limited shield but struck the judicial-review

ouster and subjected amendment power to basic structure.

Attempted Part IV primacy: The 42nd Amendment extended 31C to all DPSP. *Minerva Mills (1980)* invalidated it: Parts III and IV are "two wheels," and their balance is basic structure. The goals of Part IV must be pursued through rights-compatible means.

Harmonising phase: *Unni Krishnan* used Articles 41/45/46 to illuminate Article 21; the 86th Amendment then inserted Article 21A. *I.R. Coelho* prevented post-1973 Ninth Schedule immunity from defeating basic structure.

Current precision: *Property Owners Association (2024)* confirms the original 39(b)/(c) shield, while rejecting automatic classification of every private asset as a community resource.

Verdict: Harmony has replaced crude hierarchy: rights remain enforceable constraints, directives supply distributive ends, amendment/legislation may reconcile them, and basic structure preserves judicial review and balance.

Why this earns marks: It traces the complete chronology, explains cause and effect, includes education and Ninth Schedule developments, states the exact 2024 position and gives a qualified answer to the final question.

How to improve this answer: Turn the chronology into five dated milestones and reserve a distinct final paragraph for the verdict: harmony governs constitutional design, while enforceable rights still control inconsistent ordinary law outside a valid Article 31C shield.

Original Q4 - Assess whether India's legal-services and Lok Adalat framework adequately realises Article 39A. (15 marks, 250 words)

Model solution. Thesis: India has created a deep statutory architecture for Article 39A, but effective equal justice depends on service quality and informed consent, not institutional count or disposal figures alone.

Architecture: The Legal Services Authorities Act, 1987 creates NALSA, State Authorities, Supreme Court/High Court Committees, District Authorities and Taluk Committees. Section 12 covers SC/ST members, trafficking/begar victims, women, children, persons with disability, disaster/atrocities victims, industrial workmen, persons in custody and those below prescribed income ceilings. Section 13 adds a prima facie-case test.

Services: The network supplies advice, representation, drafting, fees/documents, clinics and awareness. *M.H. Hoskot* and *Hussainara Khatoon* connect counsel to Article 21 fair procedure.

Lok Adalat contribution: Ordinary Lok Adalats consensually settle pending or pre-litigation disputes; awards are deemed decrees, final and non-appealable. Permanent Lok Adalats address pre-litigation public-utility disputes and may decide on merits after failed conciliation, subject to the statutory offence bar.

Gaps: Low awareness, weak lawyer-client communication, uneven panel quality, linguistic/digital exclusion and pressure for disposal can reduce substantive justice. Consent must not become coerced settlement.

Way forward: early advice, counsel-performance review, client feedback, local-language access, stronger Taluk clinics and outcome-based evaluation.

Conclusion: Article 39A is institutionally realised but not uniformly experienced; the next reform is quality assurance and last-mile trust.

Why this earns marks: It accurately separates eligibility, institutions, ordinary/Permanent Lok Adalat powers, Article 21 cases, achievement and implementation limits, and proposes reforms tied to the diagnosis.

How to improve this answer: Add *Suhas Chakma (2024)* as concrete prison-delivery evidence and organise the assessment under access, quality and consent; avoid spending more than one-third of the answer merely listing institutions.

Original Q5 - How far have Directive Principles transformed India from a police state into a welfare state? Critically evaluate. (20 marks, 250 words)

Model solution. Thesis: DPSPs have transformed the constitutional purpose and institutional reach of the Indian State, but uneven capacity and outcomes make the transition substantial rather than complete.

Constitutional change: Articles 38-39 establish justice, livelihood, distribution and anti-concentration; Articles 41-43 address assistance, humane work and living wages; Articles 45-48A extend the programme to childhood, weaker sections, health, agriculture and environment. Government is consequently judged not only by order and legality but also by social capability and distribution.

Institutional conversion: Land-reform protection through Articles 31A-31B supported redistribution, subject to *I.R. Coelho* review. Article 40 informed the 73rd Amendment; Article 39A produced the Legal Services Authorities Act, 1987 and NALSA. Articles 41/45 helped lead through *Unni Krishnan* to Article 21A and the RTE Act. Article 48A supports environmental legislation and Article 21 jurisprudence; Article 43B constitutionalises co-operative principles, while *Rajendra N. Shah* preserves federal limits. Maternity, wage and social-security laws provide further vehicles.

Critical limits: Enactment does not ensure delivery. Local bodies may lack funds and staff; legal-aid quality, labour protection, nutrition and environmental compliance vary across States. Electoral incentives can favour visible transfers over durable institutions, and federal fiscal inequality produces territorial gaps.

Welfare ends also remain rights-disciplined: *Minerva Mills* makes Part III-Part IV harmony basic structure, while *Property Owners Association* preserves only a narrow Article 31C shield.

Conclusion: India is constitutionally a welfare State, but fuller transformation requires funded local institutions, measurable service quality and rights-compatible implementation.

Why this earns marks: It combines constitutional purpose, named institutions, delivery mechanisms, federal limits and a graded degree verdict.

How to improve this answer: Group evidence under social floors, decentralisation and regulatory welfare rather than listing schemes.

Original Q6 - "Directive Principles are a constitutional compass, not a delivery guarantee." Evaluate the criticisms and continuing utility of Part IV. (20 marks, 250 words)

Model solution. Thesis: The metaphor is accurate if "compass" means binding constitutional direction rather than optional morality: Part IV guides legislation, interpretation and political accountability but cannot itself guarantee resources or outcomes.

Criticisms: K.T. Shah's "pious superfluities" and resource-dependent cheque attack the absence of a judicial remedy. T.T. Krishnamachari's "dustbin of sentiments" and N. Srinivasan's arrangement critique question coherence; Ivor Jennings saw pious aspirations and a dated Fabian inheritance. K. Santhanam warned of institutional and federal conflict.

These objections matter. Article 41 acknowledges economic-capacity limits; broad directives can invite symbolic legislation, selective implementation or judicial overreach. Health, agriculture, labour, local government and personal law also involve divided competence. Without budgets, staff and grievance systems, constitutional language may not alter lived outcomes.

Continuing utility: Article 37 nevertheless declares the principles fundamental and imposes a State duty. Ambedkar linked them to economic democracy and electoral sanction; Granville Austin treated Parts III and IV as the conscience of social revolution; B.N. Rau stressed educative value; M.C. Setalvad described them as guides to courts and State action.

Their institutional record is concrete: Article 39A produced NALSA; Article 40 informed constitutional local government; Articles 41/45 supported Article 21A; Article 48A shaped environmental law; Article 43B supports co-operative autonomy. *Minerva Mills* constitutionalises harmony, and *Property Owners Association* preserves a bounded distributive shield.

Conclusion: DPSPs are neither enforceable rights nor empty promises. They set constitutional ends and standards of justification; delivery still requires finance, federal coordination, capable institutions and Part III-compatible means.

Why this earns marks: It pairs named criticism with constitutional and institutional responses, then gives a qualified delivery verdict.

How to improve this answer: Pair each critique with one rebuttal and test implementation through funding, capacity and grievance correction.